

23STCV24892 23STCV24892

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-07-23
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Case Number: 23STCV24892 Hearing Date: July 23, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

MARIO ALBERTO ACOSTA,

Plaintiffs,

vs.

SUHAIL T. BERBER ARROYO, ET AL.,

Defendant.

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CASE NO.: 23STCV24892

[TENTATIVE] ORDER DENYING MOTION TO BE RELIEVED
AS COUNSEL

Dept. 506

8:30 a.m.

JULY 23, 2024

An

attorney is entitled to withdraw upon the consent of the client, or without that consent if approved by the court. (Code Civ. Proc., § 284; Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) In the latter case, counsel must make a motion to be relieved as attorney of record. The motion must be made using mandatory forms: Notice of Motion and Motion to be Relieved as Counsel – Civil (MC-051), Declaration (MC-052), and Proposed Order (MC-053). (Cal. Rules of Court, rule 3.1362, subd. (a), (b), (e).)

The

declaration accompanying the motion to be relieved as counsel must state “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362, subd. (b).)

The

notice to the client must be done by personal service, electronically, or mail. If it is done via mail under Code of Civil Procedure section 1013, it must be

accompanied by a declaration confirming the service address to be the most current residence or that it is the client's last known address, and the attorney has been unable to locate a more current address. (Cal. Rules of Court, rule 3.1362, subd. (d)(1)(A)-(B).)

Plaintiff's

counsel, R. Grace Rodriguez, moves to be relieved as counsel for Plaintiff Mario Acosta. (Rodriguez's MC-052 Dec., Item 1.) Plaintiff's counsel testifies that there has been an irremediable breakdown in the attorney-client relationship that makes it unreasonably difficult for counsel to carry out the representation effectively. (Id. at Item 2.) Counsel confirmed Plaintiff's address through conversation with a person familiar with the client within the past 30 days. (Id. at Item 3(b).) Plaintiff's counsel served Plaintiff with the Notice of Motion, MC-051 on June 18, 2026 by eService on opposing counsel. (Notice, MC-051.)

Plaintiff's

motion to be relieved as counsel is denied because (1) Plaintiff did not submit a proposed order on the mandatory Judicial Council Form MC-053; (2) there is no proof of service of the declaration of counsel, MC-052 on any parties, including Plaintiff; and (3) the Notice of Motion, MC-051 was only served on opposing counsel but not Plaintiff.

Counsel's

motion fails to comply with California Rules of Court, rule 3.1362.

The

motion to be relieved as counsel of Plaintiff's counsel R. Grace Rodriguez is DENIED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 7th day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court